

Smt. Omwati v. State of U.P. And 2 Others

Allahabad High Court · Division Bench · 25 July 2022 · Writ - C No. 12580 of 2022 · **Writ petition disposed of; petitioner given liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided within the next four weeks after hearing; no coercive action for eight weeks or until disposal of the objection, whichever is earlier**

HEADNOTE

Where a consumer seeks certiorari to quash an Executive Engineer's order on a demand of Rs. 50,000 as a condition of restoring supply, and mandamus for a new connection without those alleged arrears, and the licensee's counsel states that an objection to the demand will be decided in accordance with law within a time-bound period, the High Court will not decide the demand, restoration, or new connection on merits. The petition is disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks; if so submitted, it is to be decided after hearing within the next four weeks. Coercive action on the demand is stayed for eight weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Smt. Omwati filed Writ-C No. 12580 of 2022 against the State of U.P. and two others, including the Executive Engineer, Electricity Distribution Division, Pashchimanchal Vidhut Vitran Nigam Limited, Bulandshahr. She sought certiorari to quash that officer's order dated 28.12.2020, a mandamus restraining a demand of Rs. 50,000 for restoring her electricity connection, and a mandamus to grant a new connection without those alleged consumption arrears. The 28.12.2020 order had purported to decide her objection/complaint dated 27.12.2020.

On 15.7.2022 a Division Bench recorded that the 28.12.2020 order showed absolutely no consideration of that complaint, which had been decided the next day, and directed a counter-affidavit with proof of electric poles installed and any meter-ceiling certificate, listing the matter for 25.7.2022. On that date, counsel for the distribution licensee stated that the petitioner may file an objection against the impugned demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed restoration/new-connection arrears — objection under Para 6.5; writ not decided on merits

QUESTION

Where a writ challenges an Executive Engineer's order on a Rs. 50,000 demand for restoration and a new connection without those arrears, will the Court decide the demand on merits or relegate the petitioner to Para 6.5?

HOLDING

On the licensee's statement that the petitioner may file an objection against the impugned demand, the Court, without expressing any opinion on merits, disposed of the writ with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent No. 3 within four weeks. If that objection is submitted in time, respondent No. 3 shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ order of 25.7.2022

QUALIFIER

The Court did not quash the 28.12.2020 order or decide entitlement to restoration or a new connection without the Rs. 50,000 arrears. An earlier listing had found that order showed absolutely no consideration of the 27.12.2020 complaint.

FLAG Three-page unnumbered order-sheet concatenating two sittings. On 15.7.2022 (Kesarwani and Jayant Banerji, JJ.) none appeared for the petitioner; the Court found the 28.12.2020 order showed no consideration of the 27.12.2020 complaint (decided the next day) and directed a counter-affidavit with proof of electric poles and any meter-ceiling

certificate, listing 25.7.2022. Operative disposal is 25.7.2022 (Kesarwani and Chandra Kumar Rai, JJ.). The Court wrote 'Para 6.5', not a sub-clause. No precedent cited.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ On the licensee's statement, the writ challenging the 28.12.2020 order and the Rs. 50,000 restoration/new-connection demand was disposed of by relegating the petitioner to an objection under Para 6.5, without deciding merits. ¶ [order of 25.7.2022](#)

clause-6.5-statutory-remedy-disputed-bill The Court treated Para 6.5 of the U.P. Electricity Supply Code, 2005 as the statutory forum for the objection to the alleged consumption arrears, to be decided by respondent No. 3 after hearing within a further four weeks. ¶ [order of 25.7.2022](#)

clause-6.5-representation-executive-engineer Liberty was granted to submit the Para 6.5 objection before respondent No. 3, the Executive Engineer, Electricity Distribution Division, Pashchimanchal Vidhut Vitran Nigam Limited, Bulandshahr. ¶ [order of 25.7.2022](#)

6.5-representation-as-appropriate-remedy The objection was to be filed within four weeks; coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ [order of 25.7.2022](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE EXECUTIVE ENGINEER'S ORDER DATED 28.12.2020

Sought to be quashed; not quashed. The 15.7.2022 listing found absolutely no consideration of the 27.12.2020 complaint, decided the next day. The 25.7.2022 disposal expressly declined any opinion on merits and left the demand to a fresh Para 6.5 objection. ¶ [orders of 15.7.2022 and 25.7.2022](#)

NOT DECIDED — WHETHER RS. 50,000 ALLEGED CONSUMPTION ARREARS CAN BE DEMANDED AS A CONDITION OF RESTORING SUPPLY OR RELEASING A NEW CONNECTION

The restoration restraint and new-connection mandamus were neither granted nor refused on merits; both were left to the Para 6.5 objection. ¶ [order of 25.7.2022](#)

NOT DECIDED — PROOF OF ELECTRIC POLES INSTALLED AND ANY METER-CEILING CERTIFICATE

Directed to be filed with the counter-affidavit on 15.7.2022; the disposing order did not return to those documents. ¶ [order of 15.7.2022](#)